

**IN THE NATIONAL CONSUMER DISPUTES REDRESSAL COMMISSION
NEW DELHI**

FIRST APPEAL NO. NC/FA/946/2021

(Against the order dated 01.10.2021 in Complaint No. 137/2019 of the State
Consumer Disputes Redressal Commission, Rajasthan)

With

IA/10483 & 10484/2021 (Stay and Exemption)

M/s. S. V. N. Buildtech Pvt. Ltd.

... Appellant (s)

versus

Surender Pal & Ors.

... Respondent(s)

DIARY NO. 17511/NCDRC/2026-AE

(Against the order dated 19.06.2026 in MA/8/2023 of the State Consumer
Disputes Redressal Commission, Rajasthan)

M/s. S. V. N. Buildtech Pvt. Ltd.

... Appellant (s)

versus

Surender Pal & Ors.

... Respondent(s)

BEFORE:

HON'BLE MR. JUSTICE A.P. SAHI, PRESIDENT

HON'BLE MR. BHARATKUMAR PANDYA, MEMBER

For the Appellant (s) : Mr. Rakesh Kakar and Ms. Varsha, Advocates

For the Respondent (S) : Mr. Abubakar Ali, Advocate for the
Complainants

PRONOUNCED ON 07.08.2026

ORDER

JUSTICE A.P. SAHI, PRESIDENT

1. The complaint filed by the respondent/ complainant being CC/137/2019 was finally allowed on 01.10.2021 by the SCDRC, Rajasthan, whereby the appellant was directed to refund the amount paid by the complainants together with interest against the booking of a premises

by the complainant as directed therein and a sum of Rs.50,000/- as compensation and Rs.25,000/- as costs.

2. The appellant aggrieved by the said order has preferred FA/946/2021 in which notices were issued on 09.03.2022, but no interim orders were granted.
3. The complainant appears to have filed an execution before the State Commission being MA/8/2023, where orders were passed and now finally an order of attachment of the bank account of the appellant has been passed on 01.05.2026, attaching a sum of Rs.50,23,185/- of the escrow account as referred to therein.
4. An execution appeal has been preferred against the said order impugned in Diary No. 17511/2026, the same could not be registered as an execution appeal, as the State Commission has been registering execution applications as miscellaneous applications, which is causing impediment in the registration of the proceedings as an appeal execution before this Commission on the e-jagriti portal. We however direct that Diary No. 17511/2026 shall stand registered as an appeal execution.
5. When the diary number appeal came up before us on 03.08.2026, we directed that since there is already a regular appeal pending against the order of the State Commission, the same should be placed before us as no interim orders had been passed. We therefore called upon the

learned counsel for the appellant to address us on both the matters to be heard today.

6. We have heard Mr. Rakesh Kakar, learned counsel for the appellant in both the appeals and the learned counsel for the respondent/complainant. Learned counsel for the appellant has also handed over an application regarding the calculation disputing the same and it has been urged that the same does not reflect the correct adjustments in the order of attachment. The contents of the said application and the calculation sheets are extracted herein under:

**APPLICATION UNDER SECTION 151 CPC FOR TAKEN ON RECORD
THE CALCULATION SHEET ON BEHALF OF APPELLANT.**

MOST RESPECTFULLY SHWEATH:-

1. That the appellant has filed the Appeal in Execution against the order dated 19.06.2026 passed by the Hon'ble State Commission, Jaipur, Rajasthan without issuing and serving any notice of the execution petition and straight away on the submissions of respondent block and attached the Escrow account of the appellant company without any intimation to this regard.
2. That this Hon'ble Court pleased to taken up the matter considering the urgency and irregularity done by the Hon'ble State Commission at the time of passing the order to block and attach the Escrow Account of the appellant company.
3. That the Hon'ble State Commission, Jaipur, Rajasthan passed the Garneshee order on the basis of the calculation sheet filed by the respondent without given any opportunity to the appellant to respond to the said calculation sheet.
4. That the appellant after go through the said calculation sheet came to know that the respondent has not correctly filed the calculation sheet and obtained the orders to block and attached

the Escrow Account for the tune of Rs. 50,23,185/- whereas the appellant time to time has compensated the respondent by making the payment of compensation.

5. That the accounts department of the appellant company has gone through the payment records of the respondent and find out that there are discrepancies in the calculation and according to the appellant there is a difference in the total calculation.
6. That the appellant also compensated number of home buyers by making the payment of compensation for RS. 3,88,520/- and gold coin for the amount of Rs. 1,50,000/- but this amount has not been mentioned in the calculation sheet filed by the respondent in the State Commission, Jaipur, Rajasthan.
7. That the calculation sheet filed without any basis by the respondent in the state Commission, Jaipur, Rajasthan.
8. That appellant has deposited the service tax and TDS to the concerned department which is also required to be deducted as the respondent only is entitled to claim the said amount from the concerned department.
9. That according to the abovesaid submissions the appellant may be granted a one opportunity to place their calculation sheet before the Hon'ble State Commission, Jaipur, Rajasthan.
10. That for the ready reference the calculations sheet has been prepared and is annexed with this application for passing of the appropriate orders to the Hon'ble State Commission, Jaipur, Rajasthan to consider the same while disposing of the execution petition. The calculation sheet is annexed as Annexure-P-1.

Prayer

It is therefore prayed to this Hon'ble Court under the above facts and circumstances kindly taken on record the calculation sheet for the proper adjudication of the case it is also prayed the interim order may kindly be continue in the interest of justice.


APPLICANT/PETITIONER.
(V.N.BUILDTech PVT. LTD.)

TOTAL Received										
Sr. no.	Date	Mode	Received Amount	Service Tax	Interest Amount	Interest Rate	TBI Date	Days	Interest Amount	Total Amount
1	9-Oct-16	Self	1,131,924.00	33,030.00	1,068,894.00	9.0%	1-Feb-22	2672	704,240.08	1,773,134.08
2	11-Oct-16	Self	100,000.00	2,907.00	97,093.00	9.0%	1-Feb-22	2670	63,662.52	160,655.52
3	21-Feb-15	Self	622,000.00	18,644.00	603,356.00	9.0%	1-Feb-22	2537	377,436.37	980,792.37
4	19-May-15	Self	825,000.00	24,728.00	800,272.00	9.0%	1-Feb-22	2450	483,453.80	1,283,725.80
5	1-Feb-22	Balance						1651	1,183,839.19	1,183,839.19
6	1-Jan-22	Legal Fees			25,000.00	9.0%	10-Aug-26	1682	10,368.49	35,368.49
7	1-Jan-22	Mental			50,000.00	9.0%	10-Aug-26	1682	20,736.99	70,736.99
			2,543,927.00	79,399.00	2,644,528.00				2,843,937.45	5,488,465.45

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Total Paid										
Sr. no.	Date	Mode	Amount	Interest Rate	TBI Date	Days	Interest Amount	Total Amount		
1	15-Jun-17	Self	35320.00	9.0%	1-Feb-22	1592	14,735.70	50,055.70		
2	15-Aug-17	Self	35320.00	9.0%	1-Feb-22	1531	14,204.45	49,524.45		
3	14-Sep-17	Self	35320.00	9.0%	1-Feb-22	1601	13,943.17	49,263.17		
4	28-Oct-17	Self	35320.00	9.0%	1-Feb-22	1557	13,559.98	48,879.98		
5	1-Nov-17	Self	35320.00	9.0%	1-Feb-22	1553	13,525.13	48,845.13		
6	28-Nov-17	Self	35320.00	9.0%	1-Feb-22	1526	13,290.00	48,610.00		
7	25-Jan-18	Self	35320.00	9.0%	1-Feb-22	1468	12,784.87	48,104.87		
8	5-Mar-18	Self	35320.00	9.0%	1-Feb-22	1429	12,445.22	47,765.22		
9	3-Apr-18	Self	35320.00	9.0%	1-Feb-22	1400	12,192.66	47,512.66		
10	7-Sep-18	Self	35320.00	9.0%	1-Feb-22	1243	10,825.34	46,145.34		
11	24-Oct-18	Self	35320.00	9.0%	1-Feb-22	1196	10,416.01	45,736.01		
			388520.00		TOTAL		141922.53	530442.53		
									Total Receivable	5,488,465.45
									Total Paid	530,442.53
									Balance Due	4,958,022.91
									TDS To be deposited by the Developer 10% on Interest	270,201.49
									Balance Due	4,687,821.42
									10 Grams Gold Coin Given in Kind	150,000.00
									Balance Due	4,537,821.42

V. BUILDTECH

for the purpose of the appeal

7. We have also simultaneously proceeded to hear the learned counsel finally on the regular appeal itself. According to the appellant they failed to abide by the timeline of handing over the property to the respondent/ complainant for reasons beyond their control that but in fact has indicated the delay for which contentions have been raised that they were for bonafide considerations. On the other hand the appellant has also alleged that the complainant had not made any timely

payments and was a defaulter and hence the complaint ought to have been dismissed.

8. However, while advancing these pleas, what is also evident that for the delay that was admittedly caused by the appellants, have also been partially compensated to the respondent/ complainant which the appellants have described a generous gesture towards the complainants. A sum of Rs.3,88,520/- was therefore paid on account of such delays.
9. The fact remains that the project commenced in the year 2014 and the completion period was three years from the date of excavation with a grace period of six months thereafter. The complainant paid a sum of Rs.26,48,927/- against the consideration of the premises, the total estimated price whereof was Rs.76,26,200/-. An agreement was executed on 13.02.2015. No progress was made and the appellants took a plea that delays were caused due to non-availability of the no objection certificate from the Airport Authority of India, whereafter the RERA Act came into force which required registration, that also consumed time and the RERA authorities have also granted an extension up to 2021 and even thereafter due to COVID. The plea of constructions being impeded due to air pollution and non-availability of Red Sand (Bazri) also led to the delays. According to the appellants these delays were intimated to all the buyers including the complainants

and thereafter compensation was also paid as referred to above. In the given circumstances, in the absence of any delay on the part of the appellant, the complaint could not have been allowed on the basis of the findings recorded in the impugned order.

10. A perusal of the impugned would also indicate that the construction was not even complete even after the filing of the complaint and the constructions were still on as late as in December, 2019. Taking into account the entire delay, the State Commission allowed the complaint and direct refund after adjusting the compensation paid.
11. We find that the nature of the reasons given for the delay are not attributable in any way to the complainant and rather it is the own act or omissions of the appellants or its failure to perform that led to the delays as is already established on record. We therefore do not find any error in the conclusions drawn by the State Commission directing the refund of the amount.
12. As noted above the appeal remained pending and there was no interim order passed by this Commission. The execution was filed in the year 2023 and the attachment order has been passed very recently. The matter therefore now at this stage requires a final disposal and there is no reason for us to keep the matter pending.
13. Having heard the learned counsel and having considered the submissions raised as already indicated above, there is no reason to

accept any of the grounds raised in the appeal to question the correctness of the order of the State Commission. The appeal therefore cannot succeed. The complainant had established the deficiency on the part of the appellant which also stands admitted on the facts disclosed by the appellant itself that the premises had not been offered, nor had it been completed within the time prescribed. The complainants cannot be compelled to wait endlessly for any delivery of premises and therefore no relief can be granted to the appellant. Accordingly, FA/946/2021 is dismissed.

14. In the light of the above there is no occasion for us to entertain the appeal execution against the order of attachment. The issue of calculation according to the decree has to be dealt with by the State Commission in the execution matter, where the attachment orders have been passed. There is therefore no occasion for us to entertain this appeal execution, as we do not find any error in the impugned order dated 01.05.2026 passed in MA/8/2023. The same is also accordingly dismissed. Both matters stand dismissed.

Sd/-

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(A.P. SAHI, J.)
PRESIDENT

Sd/-

.....
(BHARATKUMAR PANDYA)
MEMBER

Brahm/ VM/Court-1/CAV